

Court No. - 40

Case :- WRIT - C No. - 19634 of 2018

Petitioner :- Ganga Sharan

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Umesh Chandra Tiwari

Counsel for Respondent :- C.S.C., Kapil Dev Singh Rathore

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Shashi Kant, J.

Heard learned counsel for the petitioner and Sri Kapil Dev Singh Rathore, learned counsel for the respondent Electricity Department.

The petitioner is the son of late Tara Chandra. This is a dispute with regard to an electricity bill for consumption by a Flour Mill established by the father of the petitioner. It is undisputed that late Tara Chandra died about ten years ago. The petitioner does not dispute his succession as he has inherited the said connection but at the same time the citation of recovery has been issued in the name of the father of the petitioner who is already dead.

A recovery arising out of proceedings for the such electricity dues against a dead person is impermissible and the same has also been held by a Division Bench of this Court in the case of **Gopal Swarup Chaturvedi Vs. State of U.P. and others, 1999 AWC (4), 3349**. The said decision was also in relation to certain electricity dues. The impugned citation having been issued against a dead person, the electricity department has to set into motion its machinery for substituting the petitioner for which the petitioner will have to apply and file an affidavit to that effect.

We therefore quash the impugned recovery certificate dated 05.05.2018 having been issued in the name of a dead person but at the same time we direct the petitioner to apply for the mutation of his name in terms of Clause 4.44 of the U.P. Electricity Supply Code, 2005 before the respondent no.5 along with requisite documents and the respondent no.5 shall after correcting the record then proceed to raise a demand from the petitioner in accordance with law and after considering the objections of the petitioner if any. Such proceedings shall be concluded within a period of six weeks from today whereafter the petitioner shall be informed of any such liability upon a decision to be taken by the respondent no.5.

If the liability is discharged then the proceeding should conclude but if the petitioner is somehow aggrieved by any such imposition of liability it shall be open to him to avail of such remedies that are available under the U.P. Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005.

The writ petition is allowed subject to above.

Order Date :- 29.5.2018

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